

FL-23-003132 ALESNA VS ALESNA

County: stanislaus

Division: Family Law

Department: 14

Hearing date: 2026-07-27

Motion: Petitioner's Request for Order re "Clarify," etc.—HEARING REQUIRED. Proof of mail service on Respondent is on file, but this matter is now post-judgment as of November 4, 2025, and all post-judgment order requests must be individually served on the opposing party. In the case of service by mail, the means that the opposing party's mailing address must be confirmed as current. (Fam. Code, § 215(a); Cal. Rules of Ct., rule 5.92(f)(2)(B) [Address verification by form FL-334 or equivalent required by section 215].) Petitioner did not file a form FL-334 and Petitioner's declaration does not otherwise verify the continuing validity of Respondent's mailing address. Respondent did not file a Responsive Declaration or other opposition and before the Court considers the merits of Petitioner's order request, the Court must find that compliance with section 215 has occurred, as that statute is "jurisdictional." Aside from this, there is no such thing as a "motion to clarify" a final judgment. Once the time for appeal and challenge has expired, the Court's only role with respect to a final judgment relating to property or support is to enforce the judgment "as-is." The Court may not amend, modify, or rewrite the terms of a final judgment based on subsequent developments or the parties' course of conduct or representations to each other about the terms and consequences of the final judgment. (Marriage of Thorne & Raccina (2012) 203 Cal.App.4th 492, 499 [once judgment becomes final, court generally loses jurisdiction to modify or alter it]; Marriage of Farrell (1985) 171 CA3d 695, 702 ["Any other rule of law would reduce finality of decision in dissolution cases to an illusion"]; Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026) Ch. 17-E, § 17:340.) The provision for an equalization payment by Respondent is already an "order" that Respondent is obligated to follow and any further order would be redundant and is unnecessary. The Court must remain neutral and may not give either party legal advice, but it is a matter of law that orders regarding money or property in a final judgment are tantamount to "money judgments" for purposes of the Enforcement of Judgments Act and may be enforced or collected using any of the means provided by that Act. Petitioner may wish to seek legal advice at her own expense but is also welcome to contact the Court's Self-Help Center for free assistance with legal forms and procedures that do not require providing legal advice. The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/family-law-tentative-rulings>

Source SHA-256: 7196ad74f435ccfa7141b71e2ebd3ef05512519a9602a2a737b42dcde54dbdf3

FL-23-003132 – ALESNA VS ALESNA

Petitioner's Request for Order re "Clarify," etc.—HEARING REQUIRED.

Proof of mail service on Respondent is on file, but this matter is now post-judgment as of November 4, 2025, and all post-judgment order requests must be individually served on the opposing party. In the case of service by mail, the means that the opposing party's mailing address must be confirmed as current. (Fam. Code, § 215(a); Cal. Rules of Ct., rule 5.92(f)(2)(B) [Address verification by form FL-334 or equivalent required by section 215].) Petitioner did not file a form FL-334 and Petitioner's declaration does not otherwise verify the continuing validity of Respondent's mailing address. Respondent did not file a Responsive Declaration or other opposition and before the Court considers the merits of Petitioner's order request, the Court must find that compliance with section 215 has occurred, as that statute is "jurisdictional."

Aside from this, there is no such thing as a "motion to clarify" a final judgment. Once the time for appeal and challenge has expired, the Court's only role with respect to a final judgment relating to property or support is to enforce the judgment "as-is." The Court may not amend, modify, or rewrite the terms of a final judgment based on subsequent developments or the parties' course of conduct or representations to each other about the terms and consequences of the final judgment. (Marriage of Thorne & Raccina (2012) 203 Cal.App.4th 492, 499 [once judgment becomes final, court generally loses jurisdiction to modify or alter it]; Marriage of Farrell (1985) 171 CA3d 695, 702 ["Any other rule of law would reduce finality of decision in dissolution cases to an illusion"]; Hogoboom & King, Cal. Prac. Guide Family L. (TRG 2026) Ch. 17-E, § 17:340.)

The provision for an equalization payment by Respondent is already an “order” that Respondent is obligated to follow and any further order would be redundant and is unnecessary. The Court must remain neutral and may not give either party legal advice, but it is a matter of law that orders regarding money or property in a final judgment are tantamount to “money judgments” for purposes of the Enforcement of Judgments Act and may be enforced or collected using any of the means provided by that Act. Petitioner may wish to seek legal advice at her own expense but is also welcome to contact the Court’s Self-Help Center for free assistance with legal forms and procedures that do not require providing legal advice.

The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25: